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August 17, 2026

Honorable Debbie-Anne A. Reese
Secretary
Federal Energy Regulatory Commission
888 First Street, NE, Room 1A
Washington, DC 20426

Re: *PJM Interconnection, L.L.C.*, Docket Nos. ER26-1479-001
Compliance Filing of PJM Interconnection, L.L.C. in Response to Order on Rehearing, Clarification, Compliance Filing, and Paper Hearing in Docket Nos. EL25-49-002, et al.

Dear Secretary Reese:

Pursuant to section 206 of the Federal Power Act,[1] PJM Interconnection, L.L.C. ("PJM") hereby submits proposed revisions to the PJM Open Access Transmission Tariff ("Tariff")[2] in accordance with the Federal Energy Regulatory Commission's ("Commission") directives in its June 18, 2026, Order on Rehearing, Clarification, Compliance Filing, and Paper Hearing ("June Order") [3] in Docket No. EL25-49-002, et al.[4] As discussed below, PJM proposes an effective date for the Tariff revisions in Parts I, III,

[1] 16 U.S.C. § 824e.

[2] Capitalized terms not otherwise defined herein have the meaning set forth in PJM's Open Access Transmission Tariff ("Tariff") or the Amended and Restated Operating Agreement of PJM Interconnection, L.L.C.

[3] *PJM Interconnection, L.L.C.*, 195 FERC ¶ 61,209 (2026).

[4] PJM's submission of this partial compliance filing overlaps with a broader reform framework that the Commission's Large Load Order (as defined below) invites. PJM is identifying, with stakeholder engagement, what changes to its Tariff may be needed on a holistic basis to develop a Federal Power Act section 205 filing to fully respond to the Large Load Order. PJM intends to submit that filing by mid-November 2026. Today's partial compliance filing should not be construed to, and is in no way intended to, limit the reforms PJM will pursue to meet the challenges of the moment and resolve the Commission's preliminary findings in the Large Load Order.

VI, VII, VIII, and IX of October 17, 2026, 61 days after the date of this filing.[5] For the new Interim Network Integration Transmission Service ("Interim NITS") provisions in Part XI of the Tariff, PJM proposes an effective date of July 1, 2028, to provide time for operational changes and implementation of additional operational tools that will be needed to curtail non-firm Interim NITS.

Consistent with the directives of the June Order, PJM proposes compliance changes to:

- Modify the definitions of Co-Located Load, Behind the Meter Generation ("BTMG"), and Necessary Study, as directed;[6]
- Modify the definition of Retail BTMG to eliminate the 50 megawatts ("MW") nameplate limit for netting;[7]
- Add a definition of Eligible Load and Eligible Generating Facility to Tariff, Part I, section 1 (Definitions) to make Interim NITS available to Eligible Customers serving Co-Located Load or load connected to BTMG and make conforming changes to incorporate these new terms in Parts III, VI, VII, VIII, IX, and XI;[8]
- Remove the requirement for existing customers to enter into a new Generation Interconnection Agreement ("GIA") to serve Co-Located Load, make corresponding changes to Parts VI and VII to allow existing service agreements

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[5] This requested effective date applies to the Tariff revisions proposed herein (except for new Tariff, Part XI), as well as to the Tariff revisions proposed without effective dates in the Thirty-Day Compliance Filing, the Sixty-Day Compliance Filing, and the May 18 Compliance Filing and accepted in the April 16 Order and the June Order. *See PJM Interconnection, L.L.C.*, Thirty-Day Compliance Filing with Order on Show Cause of PJM Interconnection, L.L.C., Docket No. ER26-1088-000 (Jan. 20, 2026) ("Thirty-Day Compliance Filing"); *PJM Interconnection, L.L.C.*, 60-day Compliance Filing for Co-Located Load Related Revisions to Open Access Transmission Tariff to Comply with Commission Order in Docket No. EL25-49, et al. of PJM Interconnection, L.L.C., Docket No. ER26-1479-000 (Feb. 23, 2026) ("Sixty-Day Compliance Filing"); *PJM Interconnection, L.L.C.*, Compliance Filing to the Commission's April 16 Order on PJM's Thirty-Day Compliance Filing with the Order to Show Cause of PJM Interconnection, L.L.C., Docket No. ER26-1088-001 (May 18, 2026) ("May 18 Compliance Filing"); *PJM Interconnection, L.L.C.,* 195 FERC ¶ 61,030 (2026) ("April 16 Order"). All these changes are shown in redline in Attachment A.

[6] June Order at P 207 & n.519 (Behind the Meter Generation); *id.* at P 280 n.670 (Necessary Studies); *id.* at PP 307 & n.717, 308 (Co-Located Load).

[7] *Id.* at PP 207, 220.

[8] *Id.* at P 91.

to be modified to serve Eligible Load via the Necessary Study process, and clarify how the Necessary Study requirements and prohibition on service before needed upgrades are complete will apply to existing projects that may already have Necessary Studies Agreements;[9]

- Provide live records for the illustrative Tariff language for Interim NITS in Part XI, incorporating certain changes directed by the June Order,[10] and additional edits to clarify the nature of the service.[11]

To improve clarity and consistency in the Tariff and make the Tariff easier to understand, PJM also proposes minor revisions to Parts I, III, VI, VII, VIII, IX and X to cross-reference Part VIII as needed; make clear that the Provisional Interconnection Service and Necessary Study process provided in Part VIII is available to Interconnection Customers under Part VI, as well as to Expedited Interconnection Track Project Developers under Part X; applies to those entities and to Eligible Customers under Part III; and clarify that the use of the terms "Project Developer," "Generation Project Developer," and "Generation Interconnection Agreement" under Tariff, Part VIII shall be understood to reference Interconnection Customers and Interconnection Service Agreements ("ISA") under Part VI, as appropriate.

I. INTRODUCTION

A. Commission December Order

On December 18, 2025, the Commission issued the Order on Show Cause ("December Order") finding the Tariff unjust and unreasonable due to the lack of

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[9] *Id.* at P 284.

[10] *See, e.g.*, *id.* at PP 515, 519 (directing PJM to eliminate provisions disqualifying an Eligible Customer from taking new transmission services after one instance of failure to follow a curtailment or load shedding directive).

[11] *See* proposed Tariff, Part XI, Subpart A, sections 701, 702, 705.

specificity for the rates, terms, and conditions that apply to Co-Located Load and directing PJM to make a number of compliance and informational filings.[12]

First, the December Order directed PJM to make a compliance filing within 30 days to clarify the rates, terms, and conditions that apply to an Interconnection Customer[13] seeking to serve Co-Located Load with new generation, including with Surplus Interconnection Service and Provisional Interconnection Service.[14]

Second, the December Order directed PJM to make a compliance filing within 60 days to, *inter alia,* modify the Retail BTMG netting rules to limit netting over a certain threshold;[15] add certain requirements for Eligible Customers taking transmission service on behalf of Co-Located Loads;[16] and clarify that existing customers seeking to modify ISAs/GIAs to accommodate Generating Facilities serving Co-Located Load must follow Necessary Study processes.[17]

Third, the December Order ordered a paper hearing to determine the appropriate rates, terms, and conditions for the three new transmission service.[18] Among other things, the Commission asked PJM to address (1) the appropriate rates, terms and conditions for the new services; (2) the appropriate rates for customers taking new transmission services for

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[12] *PJM Interconnection, L.L.C.*, 193 FERC ¶ 61,217, at PP 1-2, 161, 231-36 (2025) ("December Order").

[13] Under PJM's current interconnection rules in Tariff, Parts VII, VIII, and IX, Interconnection Customers are referred to as "Project Developers." PJM uses in this filing the term used in its current interconnection rules but it should be understood as consistent with the Commission's references to Interconnection Customers.

[14] December Order at PP 232-35.

[15] *Id.* at P 221.

[16] *Id.* at PP 193, 200.

[17] *Id.* at P 226.

[18] *Id.* at P 219.

regulation and black start services; (3) the appropriate penalty charge or remedial action for unauthorized use of the Transmission System; (4) eligibility requirements and anti-toggling mechanisms for Firm Contract Demand Transmission service; (5) interconnection requirements and operational practices needed to maintain system reliability in the event Co-Located Load or its associated generator trips offline; (6) communications, alarm, and Supervisory Control and Data Acquisition requirements for Co-Located Load; and (7) appropriate procedures for curtailment and load shed.[19]

B. PJM Compliance Filings

1. Thirty-Day Compliance Filing

On January 20, 2026, PJM made its 30-day compliance filing in Docket No. ER26-1088-000 pursuant to the December Order ("Thirty-Day Compliance Filing").[20] The Thirty-Day Compliance Filing proposed to clarify certain aspects of the Tariff for those seeking to serve Co-Located Load with new Generating Facilities.[21] Among other changes, the Thirty-Day Compliance Filing proposed to clarify that existing services in the Tariff could be used to serve Project Developers serving Co-Located Load, including Provisional Interconnection Service and Surplus Interconnection Service.[22] The Thirty-Day Compliance Filing also clarified the ability of Project Developers serving Co-Located Load to request interconnection service below nameplate capacity and the potential to accelerate the interconnection process under certain circumstances.[23]

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[19] *See id.* at P 219.

[20] *See generally* Thirty-Day Compliance Filing.

[21] *Id.* at 4-7.

[22] *Id.* at 5-7.

[23] *Id.* at 4-5.

On April 16, 2026, the Commission accepted in part and rejected in part PJM's compliance filing.[24] The Commission rejected PJM's revisions to the proposed definition of Co-Located Load because PJM's proposal to deviate from this definition by replacing the term "Point of Interconnection" with "Point of Change in Ownership" did not provide sufficient explanation as to how this proposed deviation complies with the Commission's directive in the December Order.[25] The Commission also rejected proposed Tariff revisions relating to BTMG as constituting changes that were outside the scope of the original proceeding, and directed PJM to remove revisions that incorporated the term Co-Located Load into Tariff sections related to BTMG Application Requirements.[26] On May 18, 2026, PJM submitted a compliance filing to comply with the directives set forth in the April 16 Order.[27]

2. Sixty-Day Compliance Filing

On February 23, 2026, PJM submitted its 60-day compliance filing in response to the December Order ("Sixty-Day Compliance Filing").[28] The Sixty-Day Compliance Filing proposed Tariff revisions to: (1) revise its BTMG Tariff provisions; (2) establish three new transmission services for Eligible Customers seeking to take service on behalf of Co-Located Load; and (3) revise its necessary studies processes, among other changes.[29]

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[24] *See generally* April 16 Order.

[25] April 16 Order at P 27.

[26] *See generally* May 18 Compliance Filing; *see* April 16 Order at P 30.

[27] *See generally* May 18 Compliance Filing. Neither the Thirty-Day Compliance Filing nor the Sixty-Day Compliance Filing initially proposed an effective date for the Tariff revisions to Parts I, III, VII, VIII, and IX. The May 18 Compliance Filing established an effective date of April 16, 2026 in accordance with the April 16 Order. April 16 Order at ordering para. (A).

[28] *See generally* Sixty-Day Compliance Filing.

[29] *Id.* at 1.

PJM also proposed Tariff placeholders for the new transmission services being proposed concurrently in the paper hearing.[30] Due to the uncertainty regarding the timing of Commission action on the proposed changes and the non-rate terms and conditions being proposed in the paper hearing, PJM did not propose a specific effective date for the proposed new transmission services changes.[31]

3. Paper hearing on new transmission services

PJM submitted its initial brief in Docket Nos. EL25-49-000 and EL25-49-001 to address the Commission's finding in the December Order that additional record evidence was needed to set the appropriate replacement rates, terms, and conditions for new transmission services for Eligible Customers serving Co-Located Load, including for Interim NITS, Firm Contract Demand Transmission Service, and Non-Firm Contract Demand Transmission Service.[32] PJM's initial brief set forth the non-rate terms and conditions for these new transmission services along with illustrative Tariff language. Various parties protested aspects of PJM's illustrative Tariff language.[33] In its reply brief, PJM proposed certain refinements to the illustrative language.[34]

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[30] *Id.* at 19.

[31] *Id.* at 35.

[32] *See generally* PJM *Interconnection, L.L.C.*, Initial Brief of PJM Interconnection, L.L.C., Docket Nos. EL25-49-000, et al. (Feb. 23, 2026).

[33] *See, e.g.*, *PJM Interconnection, L.L.C.*, Reply Brief of Joint Co-Location Developers and Motion to Intervene Out-of-Time of Calibrant, Convergent, U.S. Energy Storage Coalition, and Verrus, Docket Nos. EL25-49-000, et al., at 2 (Mar. 25, 2026); *PJM Interconnection, L.L.C.*, Reply Brief and Protest of Enchanted Rock, Docket Nos. EL25-49-000, et al., at 7-9 (Mar. 25, 2026) (arguing that PJM's proposal "renders Interim NITS entirely unworkable"); *PJM Interconnection, L.L.C.*, Reply Brief of Advanced Energy United and Solar Energy Industries Association, Docket Nos. EL25-49-000, et al., at 6-10 (Mar. 25, 2026).

[34] *PJM Interconnection, L.L.C.*, Reply Brief of PJM Interconnection, L.L.C., Docket Nos. EL25-49-000, et al., Attachment A (Redlines on Reply Brief to Illustrative Language for New Tariff, Part XI; Attachments F-3A and F-4; and Other Illustrative Tariff Revisions), Illustrative Tariff, Part XI, Subpart A, section 701.1 (Apr. 24, 2026).

C. The Commission's June Order

On June 18, 2026, the Commission issued the June Order, addressing the Sixty-Day Compliance Filing, the paper hearing submissions, and requests for rehearing and clarification of the December Order.[35]

The June Order found that PJM's Sixty-Day Compliance Filing partially complies with the directives of the December Order, and the Commission accepted in part and rejected in part PJM's proposed Tariff revisions and ordered PJM to submit a further compliance filing within 60 days.[36] Additionally, the June Order found that in response to the record developed in the paper hearing, certain rates, terms, and conditions for the new transmission services as directed in the December Order (i.e., Interim NITS, Firm Contract Demand transmission service, and Non-Firm Contract Demand transmission service) are just and reasonable and directed PJM to make a compliance filing to revise its Tariff.[37]

D. Large Load Order

The same day it issued the June Order, the Commission also issued a new show cause order to PJM concerning Large Loads ("Large Load Order").[38] The Large Load Order found that several aspects of PJM's Tariff appeared unjust and unreasonable due to the lack of specific procedures for integrating large loads, including a lack of procedures for interconnection studies, processing transmission service requests, and constructing network upgrades without cost shifting.[39] The Large Load Order also found PJM's Tariff

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[35] *See* June Order at PP 1-2, 4-7.

[36] *Id.* at P 8.

[37] *Id.* at P 9.

[38] *PJM Interconnection, L.L.C.*, 195 FERC ¶ 61,211, at P 1 (2026).

[39] Large Load Order at PP 60, 65, 77.

appeared to be unjust and unreasonable due to a lack of transmission service options for customers serving large loads that are willing and able to limit their withdrawals from the Transmission System.[40] The Large Load Order further found that PJM's Tariff appeared to be unjust and unreasonable due to a lack of mechanisms to ensure that costs are not shifted between transmission customers.[41]

To address these issues, the Large Load Order directed PJM to make two compliance filings.[42] First, the Large Load Order directed PJM to submit an informational filing within 30 days to explain how PJM intends to ensure that it has adequate generation to serve existing and new large loads.[43] Second, the Large Load Order directed PJM to submit within 60 days a compliance filing to explain whether its Tariff remains just and reasonable in light of the issues identified in the order, or to propose Tariff changes that would remedy the identified concerns.[44] The Commission noted that it would entertain requests to hold the show cause proceedings in abeyance if PJM demonstrated a plan to file changes pursuant to Federal Power Act section 205 to address the identified concerns.[45]

E. Partial Extension

On July 28, 2026, PJM filed a motion for extension of time to meet certain compliance requirements in the June Order.[46] PJM explained that due to the significant

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[40] *Id.* at P 86.

[41] *Id.* at P 77.

[42] *Id.* at ordering paras. (A) & (B).

[43] *Id.* at P 4.

[44] *Id.* at ordering para. (B).

[45] *Id.* at P 39.

[46] *PJM Interconnection, L.L.C.*, Motion for Extension of Time for Specified Compliance Requirements and Request for Expedited Treatment of PJM Interconnection, L.L.C., Docket Nos. EL25-49-002, et al. (July 28, 2026) ("PJM Extension Motion").

overlap in the subject matter, additional time is needed to ensure that certain compliance changes for Co-Located Load from the June Order align with the directives in the Large Load Order.[47] PJM explained that a partial extension would allow time for stakeholder engagement and feedback on the changes PJM plans to make to respond to the Large Load Order.[48] PJM sought a 90-day extension of certain directives in the June Order.[49] In particular, PJM proposed to defer implementation of the new contract demand transmission services and some aspects of the BTMG netting.[50] At the same time, PJM pledged to submit a partial compliance filing on August 17, 2026 to reflect PJM's continuous and ongoing efforts to implement the Commission's reforms.[51]

The Commission issued a notice on August 14, 2026 granting PJM's requested extension and abeyance.[52] This filing represents PJM's partial compliance filing with the June Order, as outlined in the July 28, 2026 motion for extension of time.

II. DESCRIPTION OF CHANGES

A. Prohibition on Serving Co-Located Load from Existing Generators

The June Order directed PJM to explain in its compliance filing how its changes will prohibit Interconnection Customers from serving Co-Located Loads from new and existing generators until all necessary Network Upgrades, control technologies and/or

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[47] *Id.* at 4-6.

[48] *Id*. at 6. PJM also moved to hold the Large Load proceeding in abeyance for 90 days. *PJM Interconnection, L.L.C.*, Motion of PJM Interconnection, L.L.C. to Hold Proceeding in Abeyance and Request for Shortened Answer Period and Expedited Treatment, Docket No. EL26-67-000 (July 28, 2026).

[49] PJM Extension Motion at 4-5.

[50] *Id*.

[51] *Id*. at 5-7.

[52] *PJM Interconnection, L.L.C.*, Notice of Extension of Time, Docket Nos. EL25-49-002, et al. (Aug. 14, 2026).

protection systems, and metering are complete and in service.[53] This compliance filing proposes to add Necessary Study references and provisions to Parts I, III, VI, and VII, and to direct Generation Project Developers seeking to serve Co-Located Load with an existing Co-Located Generating Facility to the Necessary Study process in Part VIII, Subpart A, section 401(H)(3).[54] In its Sixty-Day Compliance Filing, PJM proposed to add language to Part VIII for the Necessary Study process to preclude a Project Developer from implementing any planned modifications to its facilities until the Necessary Studies are completed and the amended GIA reflecting the results of such studies is fully executed and effective; the Sixty-Day Compliance Filing also provided that service to the Co-Located Load could not begin until "all required Network Upgrades, necessary control technologies and protection systems, and metering identified as necessary are complete and in service."[55] Thus, the Tariff would now require that all Interconnection Customers and Generation Project Developers seeking to serve Co-Located Load, whether with existing or new Generating Facilities: (1) provide advance written notice to PJM and the relevant Transmission Owner; (2) go through the Necessary Study process in Part VIII of the Tariff; and (3) not begin serving Eligible Load until the entire scope of the work under their GIA as amended after the Necessary Study process is complete. These combined revisions

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[53] June Order at P 285.

[54] *See* proposed Tariff, Part I, section 1 (Definitions L-M-N) (adding the definitions of "Necessary Study" and "Necessary Studies Agreement"); *id.*, Part III (General) (addition of notice requirement); *id.*, Part VI, Subpart B, section 212 (same); *id.*, Part VII, Subpart A, section 301(A)(7)(c) (same).

[55] Sixty-Day Compliance Filing, proposed Tariff Revisions (Attachments A & B), Part VIII, Subpart A, sections 401(H)(3)(a), 401(H)(3)(b)(iii). In this compliance filing, PJM proposes to further clarify in Proposed Tariff, Part VIII, the Necessary Study process by amending the listing of required and necessary equipment changes to instead reference "the entire scope of work required under that amended Generation Interconnection Agreement." Proposed Tariff, Part VIII, Subpart A, section 401(H)(3)(d). This ensures that all items determined to be necessary and therefore captured in the amended GIA are complete before the Project Developer may begin serving Eligible Load.

ensure that all these entities are treated comparably and the prohibition on serving Co-Located Loads before all the necessary upgrades and equipment changes are complete is enforced across the board.[56]

B. Revisions to Retail Behind the Meter Generation Definition

In the Sixty-Day Compliance Filing, PJM had proposed to define Retail BTMG as load being served by a generation facility with a nameplate capacity of 50 MW or less.[57] PJM also proposed to implement various exemptions from the netting limit for a transition period, contractual rights, and qualifying facilities under Public Utility Regulatory Policies Act via the Retail BTMG definition.[58] The June Order, however, rejected PJM's proposed 50 MW limit and instead directed PJM to permit Retail BTMG netting up to a 50 MW materiality threshold.[59] Consistent with the extension motion, PJM is continuing to work with stakeholders to develop Tariff language to implement the 50 MW netting provisions for Retail BTMG. However, for purposes of allowing Eligible Customers with load served by Retail BTMG to take Interim NITS,[60] PJM is proposing a revised definition of Retail

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[56] PJM also proposes herein formatting and language changes to the Necessary Study provisions in Part VIII, Subpart A, section 401(H)(3), to make clear that the Necessary Study process applies to all Project Developers that plan to make modifications to their facilities, "including but not limited to a Project Developer whose planned modifications include an Eligible Load configuration." Proposed Tariff, Part VIII, Subpart A, section 401 (H)(3)(a). PJM further proposes minor, ministerial changes to Tariff, Part VIII to spell out the term "Generation Interconnection Agreement" and replace "PJM" with "Transmission Provider," as appropriate. *See*, *e.g.*, proposed Tariff, Part VIII, Subpart C, section 408 (A)(2)(e)(i)(j)(iv); *id.*, Part VIII, Subpart E, sections 414(B)(2), 414(B)(4)(c).

[57] Sixty-Day Compliance Filing at 4-16.

[58] *Id.*

[59] June Order at PP 207, 220.

[60] *Id.* at P 91.

BTMG that eliminates the rejected 50 MW nameplate limit and other netting exemptions that will be added elsewhere in a future compliance filing.[61]

C. Expansion of Service to "Eligible Load" for Load with BTMG

The June Order directed PJM to expand the availability of the December Order's new transmission services to Network Customers serving load with BTMG that are willing and able to limit their withdrawals from the Transmission System under certain circumstances.[62] The Commission directed PJM to either add a definition of "Eligible Load" or propose other changes to implement this directive.[63] Consistent with this directive, PJM is proposing to add the term Eligible Load to the Tariff to encompass both Co-Located Load and Load with BTMG.[64] To that end, PJM is proposing to add to the Tariff, Part I, section 1, Definitions the term "Eligible Load" defined as "Co-Located Load or load connected to Behind the Meter Generation."[65] Further consistent with the Commission's directive to propose other Tariff changes necessary to expand the availability of these new services, PJM is proposing to add to the term "Eligible Generating Facility" to the Tariff to encompass both a Co-Located Generating Facility or Retail BTMG.[66] In addition, PJM is proposing conforming changes to replace "Co-Located

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[61] Proposed Tariff, Part I, section 1 (Definitions R - S) (adding the definition of "Retail Behind The Meter Generation"); *id.*, Part VIII, Subpart A, section 400, Definitions R.

[62] June Order at P 91.

[63] *Id.*

[64] Proposed Tariff, Part I, section 1 (Definitions E - F) (adding the definition of "Eligible Load").

[65] *Id.*

[66] "'Eligible Load' shall mean Co-Located Load or load connected to Behind the Meter Generation. 'Eligible Generating Facility' shall mean a Co-Located Generating Facility or Retail Behind the Meter Generation." Proposed Tariff, Part I, section 1 (Definitions E – F) (defining "Eligible Load" and "Eligible Generating Facility").

Load" with "Eligible Load" and "Co-Located Generator" with "Eligible Generator" and other clarifying changes in Tariff Part I, section 1 (Definitions),[67] Part III (Network Integration Transmission Service),[68] Part VI (Administration and Study of New Service Requests),[69] Part VII (Transition Cycle Generation Interconnection Procedure),[70] Part VIII (New Rules Generation Interconnection Procedure),[71] Part IX (Forms of Interconnection-

[67] Proposed Tariff, Part I, section 1 (Definitions O – P – Q) (updating the definition of "Provisional Interconnection Service" to reference "Eligible Load" instead of just "Co-Located Load").

[68] Proposed Tariff, Part III, sections 28.1 (replacing "Co-Located Load" with "Eligible Load"); section 29.1 (allowing customers to take NITS on behalf of "Eligible Load" instead of "Co-Located Load"); *id.*, Part III, section 29.2 (replacing "Co-Located Load" with "Eligible Load" in application procedures); *id.*, Part III, section 31.6 (replacing "Co-Located Load" with "Eligible Load" in annual load and resource information update).

[69] Proposed Tariff, Part VI, Subpart B, section 212 (adding language in Part VI, Subpart B, section 212 regarding the Necessary Study process in Part VIII for Generating Facilities to reference service to Eligible Loads).

[70] Proposed Tariff, Part VII, Subpart A, section 300, Definitions P (adding the definitions for "Eligible Load" and "Eligible Generating Facility"); *id.*, Part VII, Subpart A, section 300, Definitions P (revising the definition of "Provisional Interconnection Service" to reference "Eligible Generating Facility" and "Eligible Load").

[71] Proposed Tariff, Part VIII, Subpart A, section 400, Definitions E (adding the definitions for "Eligible Load" and "Eligible Generating Facility"); *id.*, Part VIII, Subpart A, section 400, Definitions P (updating the definition of "Provisional Interconnection Service" to reference "Eligible Generating Facility" and "Eligible Load"); *id.*, Part VIII, Subpart A, section 401 (revising the application requirements to allow Eligible Generating Facilities serving Eligible Load and clarifying the Necessary Studies process applies to Eligible Load); *id.*, Part VIII, Subpart B, section 403 (revising the application rules to allow Eligible Generating Facilities serving Eligible Load); *id.*, Part VIII, Subpart C, section 404 (updating the System Impact Studies to contemplate service to Eligible Load); *id.*, Part VIII, Subpart C, section 406 (updating the acceleration language to allow acceleration of new service requests for new facilities or increases the generation capability in existing facilities to serve Eligible Load); *id.*, Part VIII, Subpart C, section 408 (same); *id.*, Part VIII, Subpart E, section 413 (updating the language permitting service requests below the maximum facility output for new facilities or increases the generation capability in existing facilities that will serve Eligible Load); *id.*, Part VIII, Subpart E, section 414 (updating the language to permit Surplus Interconnection Service for Eligible Load).

Related Agreements),[72] and Part XI, Subpart A (Interim Network Integration Transmission Service).[73]

D. Elimination of New GIA Requirement

PJM previously proposed to require all Eligible Customers that intend to serve Co-Located Load with a new or existing Co-Located Generating Facility to enter into a new GIA pursuant to Part VIII of the Tariff, which was revised to include additional details regarding the Necessary Studies process.[74] The June Order rejected this proposal for customers with existing service agreements and directed PJM to add language concerning the Necessary Study process to Tariff, Parts VI and VII to allow customers with existing service agreements to modify those agreements.[75] Accordingly, PJM is proposing changes to allow customers that obtained service agreements pursuant to Parts VI and VII to modify those agreements pursuant to the Necessary Study process in Part VIII.[76]

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[72] Proposed Tariff, Part IX, Subpart A (Form of Application and Studies Agreement), section 1 (revising section 1 of the Application and Studies Agreement to collect applicant information for an Eligible Generating Facility serving Eligible Load); *id.*, Part IX, Subpart A (Form of Application and Studies Agreement), section 3.17 (changing "PJM" to "Transmission Provider" and clarifying all transmission service requests in the PJM Region are subject to the same deliverability tests); *id.*, Part IX, Subpart B, GIA Appendices and Schedules, Schedule O (updating Schedule O to replace "Eligible Load" with "Eligible Generating Facility"); *id.*, Part XI, Subpart G, Necessary Studies Agreement (updating the Necessary Studies Agreement to reference "Eligible Load" and "Eligible Generating Facility").

[73] Proposed Tariff, Part XI, Subpart A, section 700 (updating references to "Co-Located Load" to "Eligible Load"); *id.*, Part XI, Subpart A, section 701.1 (same); *id.*, Part XI, Subpart A, section 701.2 (same); *id.*, Part XI, Subpart A, section 701.3 (same); *id.*, Part XI, Subpart A, section 702.1 (same); *id.*, Part XI, Subpart A, section 702.4 (same); *id.*, Part XI, Subpart A, section 703 (same).

[74] *See* June Order at P 284; proposed Tariff, Part VIII, Subpart A, section 401(H)(3).

[75] June Order at P 311.

[76] *See supra* note 54 concerning addition of Necessary Study language to Parts I, III, VI, and VII; proposed Tariff, Part VIII, Subpart A, section 401(I). PJM also proposes to cross-reference Tariff, Part VIII, Subpart L, section 439, Provisional Interconnection Service, added in the Thirty-Day Compliance Filing, in Parts VI and VII to clarify that Provisional Interconnection Service is available to entities that obtained Interconnection Service under those Parts. *See* proposed Tariff, Part I, section 1 (Definitions O – P – Q) (updating the definition of "Provisional Interconnection Service"); *id.*, Part VII, Subpart A, section 300, Definitions P (same); *id.*, Part VIII, Subpart A, section 400, Definitions P (same).

For Interconnection Customers that utilized the Part VI process, because Part VI does not contain discrete definitions, PJM is revising the proposed definition of Co-Located Generating Facility in Part I to include an existing Customer Facility that is physically connected to Co-Located Load to incorporate the relevant terms from Part VI.[77] As explained above, to ensure that existing Interconnection Customers with effective ISAs do not serve Co-Located Load until all necessary upgrades and equipment are in place,[78] PJM is also adding to the Co-Located Generating Facility definition a requirement to provide advance written notice to the Transmission Provider and Transmission Owner to initiate the Necessary Study process pursuant to Part VIII, Subpart A, section 401(H)(3)(b) to use a Customer Facility to serve Co-Located Load.[79] In addition, PJM is adding language to mirror this Necessary Study process requirement in Part VI, Subpart B, section 212.[80] Finally, PJM has updated the *pro forma* Necessary Studies Agreement to include language for Queue No., reference Part VI for ISAs, incorporate references to Interconnection Customers throughout, and reference Tariff, Attachment O, Appendix 2, section 3 in paragraph 5 concerning the purpose of the Necessary Studies.[81]

For Generation Project Developers that utilized the Part VII Transition Cycle Interconnection Process, PJM is proposing to modify the definition of Co-Located

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[77] Proposed Tariff, Part I, section 1 (Definitions C - D) (revising the definition of "Co-Located Generating Facility").

[78] June Order at P 285.

[79] Proposed Tariff, Part I, section 1 (Definitions C - D) (adding to the definition of "Co-Located Generating Facility").

[80] Proposed Tariff, Part VI, Subpart B, section 212. PJM also proposes to add new Tariff, Part VIII, Subpart A, section 401(I) to clarify that Interconnection Customers with ISAs under Tariff, Part VI may utilize the Part VIII Necessary Study process and will be referred to as Project Developers or Generation Project Developers and their agreements referred to as Generation Interconnection Agreements when doing so.

[81] Proposed Tariff, Part IX, Subpart G, Necessary Studies Agreement.

Generating Facility to include both an existing and planned Generating Facility.[82] Consistent with the proposed changes in Part VI, PJM is adding a requirement to provide Transmission Provider and Transmission Owner with advance written notice to initiate the Necessary Study process pursuant to Part VIII, Subpart A, section 401(H)(3)(b) in the event a Generation Project Developer with an effective GIA intends to use a Generation Facility to serve Co-Located Load.[83] PJM is also adding this advance notice requirement for the Necessary Study process to Tariff, Part VII, Subpart A, section 301(A)(7)(c).[84] Finally, PJM is proposing a definition of Co-Located Load that references the relevant terms for Part VII of the Tariff (i.e., Generating Facility and Project Developer).[85]

E. Interim NITS

PJM is proposing the terms and conditions for Interim NITS in new Part XI of the Tariff.[86] The Part XI largely adopts the terms and conditions proposed during the paper hearing subject to certain changes directed in the June Order and other clarifications.

First, consistent with the June Order,[87] PJM clarified in section 701.1 that an Interim NITS customer will be converted automatically to a NITS customer upon completion of the relevant Network Upgrades and once the Transmission Provider updates its system to reflect those upgrades.[88] The language concerning the internal system updates

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[82] Proposed Tariff, Part VII, Subpart A, section 300, Definitions C (definition of Co-Located Generating Facility).

[83] Proposed Tariff, Part VII, Subpart A, section 300, Definitions C (definition of Co-Located Generating Facility).

[84] Proposed Tariff, Part VII, Subpart A, section 301(A)(7)(c); *id.*, Subpart A, section 300, Definitions N.

[85] Proposed Tariff, Part VII, Subpart A, section 300, Definitions C.

[86] Proposed Tariff, Part XI.

[87] June Order at P 571.

[88] Proposed Tariff, Part XI, Subpart A, section 701.1.

was added to clarify that the conversion does not happen automatically the moment the construction of the Network Upgrades is complete but must first be reflected in PJM's internal systems.

Second, consistent with the June Order,[89] PJM revised the language in section 705.2 to clarify the curtailment priority for Interim NITS relative to Non-Firm Point to Point Service and that it will prioritize customers for curtailment based on duration of service as specified in the PJM Manuals.[90] As the Commission directed,[91] PJM also added language to specify that Eligible Customers subject to curtailment may use a Co-Located Generating Facility to serve Co-Located Load provided the facility either has not obtained interconnection service yet or the facility is not a capacity resource.[92]

Third, consistent with the June Order,[93] PJM revised the operational penalties for failure to follow dispatch instructions or misoperation of control technologies to suspend service for up to 120 days after the first instance and terminate service after the second.[94]

Fourth, consistent with the June Order,[95] PJM added language in section 705.1 and to the Part I definition of Curtailment to clarify that with respect to Tariff, Part XI, its Curtailment authority includes the authority to curtail Interim NITS for capacity or reserve shortages.[96]

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[89] June Order at P 555.

[90] Proposed Tariff, Part XI, Subpart A, section 705.2.

[91] June Order at P 576.

[92] Proposed Tariff, Part XI, Subpart A, section 705.2.

[93] June Order at PP 516, 523-24, 527.

[94] Proposed Tariff, Part XI, Subpart A, section 705.6.

[95] June Order at P 551.

[96] Proposed Tariff, Part I, section 1 (Definitions C - D); proposed Tariff, Part XI, Subpart A, section 705.1.

Fifth, consistent with the June Order,[97] PJM added language in section 705.5 on Necessary Control Technologies and Protection Systems to specify that such technologies include telemetry, data exchange, and metering for the Transmission Provider to monitor the Eligible Customer's use of the Transmission System, limit withdrawals, and ensure relay settings are consistent with necessary control technologies and/or protection systems.[98]

Finally, PJM made the following additional clarifying edits:

- Section 701.1: PJM added a cross-reference to Part XI, Subpart A, section 702.3 to clarify that Eligible Customers may receive Interim NITS consistent with the Transmission Provider's determination as to the amount of service that can be *reliably* provided.[99] PJM also omitted language referencing Firm Contract Demand Service and Non-Firm Contract Demand Service, as those services will be implemented in a later compliance filing.[100]

- Section 701.2: PJM struck the term "capacity" from this section because Interim NITS is an energy-only service.[101]

- Section 701.3: PJM struck the term "capacity" from this section because Interim NITS is an energy-only service.[102]

- Section 702.3: PJM clarified that the Transmission Provider will determine the amount of Interim NITS that can be reliably provided to an Eligible Customer.[103]

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[97] June Order at P 541.

[98] Proposed Tariff, Part XI, Subpart A, section 705.5.

[99] Proposed Tariff, Part XI, Subpart A, section 701.1.

[100] *Id.*

[101] Proposed Tariff, Part XI, Subpart A, section 701.2.

[102] Proposed Tariff, Part XI, Subpart A, section 701.3.

[103] Proposed Tariff, Part XI, Subpart A, section 702.3.

- Section 705: PJM eliminated the section on "Load Shedding" as it was no longer needed due to the clarifications regarding the nature of Interim NITS (i.e., that the service is non-firm in nature).[104]

- Section 705.4: PJM added language to clarify that the Transmission Provider may curtail Interim NITS for the purpose of undertaking scheduled system upgrades and maintenance.[105]

F. Other Commission Ordered Changes

PJM implemented other compliance changes specified in the June Order as follows:

June Order Directive	PJM Compliance Change
Reject the Tariff provisions proposing that Co-Located Load that is not served by an Eligible Customer taking transmission service on its behalf "must take all necessary steps to disconnect from the Transmission System," as this provision is duplicative of PJM's proposed changes to Part VIII, Subpart B, section 403(A)(1)(r)(iv).[106]	Struck language from Tariff, Part III (General).[107]
Detail the specific provisions in the PJM Manuals concerning Necessary Studies to which the proposed Tariff language refers.[108]	Revised Tariff, Part VIII, Subpart A, section 401(H)(3)(c) to reference specific provisions of the PJM Manuals. [109]
Revise Tariff to remove the requirement for Interconnection Customers with existing ISAs pursuant to Part VI of the Tariff and GIAs pursuant to Part VII of the Tariff to enter into a new *pro forma* GIA.[110]	Struck language from Tariff, Part III (General).[111]

[104] Proposed Tariff, Part XI, Subpart A, sections 705, 705.3.

[105] Proposed Tariff, Part XI, Subpart A, section 705.4.

[106] June Order at P 264.

[107] *See* proposed Tariff, Part III (General).

[108] June Order at P 280.

[109] Proposed Tariff, Part VIII, Subpart A, section 401(H)(3)(c).

[110] June Order at P 284.

[111] *See* proposed Tariff, Part III (General).

June Order Directive	PJM Compliance Change
Reject increase in cost for Necessary Studies Agreement.[112]	Removed proposed cost increase from *pro forma* Necessary Study Agreement.[113]
Revise the Tariff's definition of Co-Located Load to use "Point of Interconnection" instead of "Point of Change in Ownership."[114]	Revised Co-Located Load definition in Parts I[115] and VII.[116]
Remove the following requirement from the definition of Co-Located Generating Facility: "If such a Generation Project Developer has an effective Interconnection Service Agreement pursuant to Tariff, Part VI or a Generation Interconnection Agreement pursuant to Tariff, Part VII, such agreement must be superseded by a Generation Interconnection Agreement pursuant to Tariff, Part VIII and the pro forma GIA in Part IX, Subpart B,"[117]	Struck language from the definition in Parts VII and VIII.[118]
Add to Part III a requirement that Interconnection Customers with ISAs or GIAs executed (or requested to be filed unexecuted) prior to the effective date of the revised generation interconnection procedures and *pro forma* GIA directed in December Order that wish to add Co-Located Load or are currently serving Co-Located Load publicly notify PJM of that addition and identify the Eligible Customer that will take transmission	Added public notice requirement to Part III (General).[120]

[112] June Order at P 288.

[113] *See* proposed Tariff, Part IX, Subpart G, Necessary Study Agreement.

[114] June Order at P 308.

[115] Proposed Tariff, Part I, section 1, Definitions C-D.

[116] Proposed Tariff, Part VII, Subpart A, section 300, Definitions C.

[117] *Id.* at P 311.

[118] Proposed Tariff, Part VII, Subpart A, section 300, Definitions C; *id.*, Part VIII, Subpart A, section 400, Definitions C.

[120] Proposed Tariff, Part III (General).

June Order Directive	PJM Compliance Change
service on behalf of that Co-Located Load.[119]	
Revise the Tariff to remove PJM's proposed revisions to the definition of Non-Retail BTMG consistent with the December Order's determination.[121]	Rejected changes in Part I, section 1 (Definitions L – M – N).[122]
Revise Tariff to assess to Eligible Customers taking transmission service on behalf of Eligible Loads: (1) administrative service charges; (2) ancillary service charges; (3) black start service charges; (4) regulation charges; and (5) any redispatch costs.[123]	Included in Interim NITS provisions in Part XI.[124]

G. Effective Date Only

PJM previously proposed compliance changes in the Sixty-Day Compliance Filing that were accepted in the June Order.[125] However, given the uncertainty surrounding aspects of the Sixty-Day Compliance Filing, PJM had not proposed a specific effective date for those changes.[126] Accordingly, PJM is filing the following Tariff records with a proposed effective date of October 17, 2026:

- Part I, section 1, Definitions A-B (Behind the Meter Generation);[127]

[119] June Order at P 311.

[121] June Order at P 314.

[122] Proposed Tariff, Part I, section 1, Definitions L-M-N (rejecting changes in the definition of "Non-Retail BTMG").

[123] June Order at P 573.

[124] Proposed Tariff, Part XI, Subpart A, section 706.

[125] *See, e.g.*, June Order at P 207 & n.519.

[126] Sixty-Day Compliance Filing at 35.

[127] Proposed Tariff, Part I, section 1 (Definitions A – B) (updating the definition of "Behind the Meter Generation"); June Order at P 207 n.519.

- Part III, section 34.3 (Netting of Non-Retail BTMG);[128]
- Part VII, Subpart A, section 300, Definitions B (BTMG);[129]
- Part VIII, Subpart A, section 400, Definitions B (BTMG);[130] and
- Part VIII, Subpart A, section 400, Definitions N (Necessary Study).[131]

III. EFFECTIVE DATE AND WAIVER REQUEST

In accordance with the Commission's regulations,[132] PJM requests an effective date for the compliance changes in Parts I, III, VI, VII, VIII, and IX of the Tariff of October 17, 2026, which is 61 days after the date of this filing.

Consistent with the Commission's directive to consider whether Interim NITS could be implemented earlier than originally proposed,[133] PJM is proposing an effective date of July 1, 2028, for the new Part XI regarding the provision of Interim NITS. At present, PJM can provide partial NITS, i.e., NITS in an amount less than requested and/or for a term shorter than requested, to Co-Located Load through the Necessary Study process and therefore is proposing an October 17, 2026 effective date for the bulk of the revisions proposed in this filing. However, PJM Operations personnel will need to implement additional tools and processes before they will be able to monitor and curtail, as needed, the new non-firm Interim NITS product proposed in Tariff, Part XI. PJM anticipates it will be able to develop, procure, and implement those tools and processes by mid-2028, and

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[128] Proposed Tariff, Part III, section 34.3.

[129] Proposed Tariff, Part VII, Subpart A, section 300, Definitions B.

[130] Proposed Tariff, Part VIII, Subpart A, section 400, Definitions B.

[131] Proposed Tariff, Part VIII, Subpart A, section 400, Definitions N; June Order at P 280 n.670.

[132] 18 C.F.R. § 35.3(a)(1).

[133] June Order at P 597.

therefore proposes the July 1, 2028 effective date for the new Interim NITS product. Because this effective date is more than 120 days after the date of filing, PJM respectfully requests waiver of 18 C.F.R. § 35.3(a)(1) to file the proposed new Tariff, Part XI now.

IV. DOCUMENTS ENCLOSED

In addition to this transmittal letter, PJM encloses the following:

1. Attachment A: Tariff Redline; and
2. Attachment B: Clean Tariff.

V. CORRESPONDENCE AND COMMUNICATIONS

Correspondence and communications with respect to this filing should be sent to, and PJM requests the Secretary to include on the official service list, the following:[134]

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VI. SERVICE

PJM has served a copy of this filing on all PJM Members and on the affected state utility regulatory commissions in the PJM Region by posting this filing electronically. In accordance with the Commission's regulations,[135] PJM will post a copy of this filing to the Commission filings section on its internet site, https://pjm.com/library/filing-order, and will send an email on the same date as this filing to all PJM Members and all state utility regulatory commissions in the PJM Region,[136] alerting them that this filing has been made

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[134] To the extent necessary, PJM requests waiver of Rule 203(b)(3) of the Commission's Rules of Practice and Procedure, 18 C.F.R. § 385.203(b)(3), to permit all of the persons listed to be placed on the official service list for this proceeding.

[135] *See* 18 C.F.R. §§ 35.2(e) & 385.2010(f)(3).

[136] PJM already maintains, updates, and regularly uses email lists for all PJM Members and affected state commissions.

by PJM and is available by following such link. If the document is not immediately available by using the referenced link, the document will be available through the referenced link within 24 hours of the filing.

VII. CONCLUSION

PJM respectfully requests that the Commission accept this compliance filing as it complies with the requirements of the June Order.

Respectfully submitted,

/s/ Wendy B. Warren

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Counsel for
PJM Interconnection, L.L.C.

August 17, 2026

CERTIFICATE OF SERVICE

I hereby certify that I have this 17th day of August 2026 caused a copy of the foregoing document to be served upon each person designated on the official service list compiled by the Secretary in this proceeding.

/s/ Ruth M. Porter
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